



SPONSOR: Rep. Carson & Sen. Hoffner
Reps. Collins, D. Short, Yearick, Bolden, Bush; Sens.
Lawson, Wilson

HOUSE OF REPRESENTATIVES
153rd GENERAL ASSEMBLY

HOUSE BILL NO. 117

AN ACT TO AMEND TITLE 3 OF THE DELAWARE CODE RELATING TO AGRICULTURAL LEASES OF STATE-OWNED LAND.

BE IT ENACTED BY THE GENERAL ASSEMBLY OF THE STATE OF DELAWARE:

1 Section 1. Amend Part II, Title 3 of the Delaware Code by making deletions as shown by strike through and
2 insertions as shown by underline as follows:

3 Chapter 20. STATE-OWNED AGRICULTURAL LAND LEASES

4 § 2001. Definitions.

5 For purposes of this chapter "State-owned agricultural land" means land of 10 acres or more that is owned by the
6 State or a political subdivision of the State and that is used or intended to be used for agricultural use as defined under §
7 902 of this title.

8 § 2002. Notice requirements.

9 (a) When the State or a political subdivision thereof seeks bids to lease State-owned agricultural land, notice of the
10 request for bids must be provided to the Delaware Farm Bureau or successor of that organization to be distributed or made
11 available to farmers.

12 (b) The notice requirement under subsection (a) of this section is in addition to any other notice required for
13 procurement of bids to lease State-owned property under State or local law, ordinance, or regulation.

SYNOPSIS

This Act requires the State and any political subdivision of the State to notify the Farm Bureau when State-owned land is listed for bidding for agricultural use. This requirement applies to land that is at least 10 acres in size and is used or intended to be used for agricultural use. The requirement to notify the Farm Bureau is in addition to, and not in lieu of, any other notice required by law.